

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLUMBIA**

JOSEPH KIRCHNER,

Plaintiff,

v.

MIKE JOHNSON, in his individual and official capacity as Speaker of the United States House of Representatives;
DONALD J. TRUMP, in his individual capacity as former and current President of the United States;
PAM BONDI, in her individual and official capacity as Attorney General of the United States;
BRENDAN CARR, in his individual and official capacity as Chairman of the Federal Communications Commission;
THE UNITED STATES HOUSE OF REPRESENTATIVES;
ANTHROPIC, PBC;
OPENAI, INC.;
APPLE INC.;
COMCAST CABLE COMMUNICATIONS, LLC;
METR (MODEL EVALUATION & THREAT RESEARCH);
and DOES 1-20, unknown co-conspirators,

Defendants.

Civil Action No. 1:25-cv-02735-ACR

**REPLY IN SUPPORT OF THE CORPORATE DEFENDANTS' JOINT MOTION TO
DISMISS PLAINTIFF JOSEPH KIRCHNER'S THIRD AMENDED COMPLAINT FOR
DECLARATORY AND INJUNCTIVE RELIEF**

TABLE OF CONTENTS

I. INTRODUCTION	1
II. ARGUMENT	1
A. The Opposition Confirms the Claims Are Patently Insubstantial (Counts I-XVIII).	1
B. Plaintiff Still Fails to State a Viable Claim Under 42 U.S.C. § 1983 (Counts I-IV).	3
i. Plaintiff Concedes that He Cannot Sue the Corporate Defendants Under 42 U.S.C. § 1983 (Counts I-IV).	3
ii. Plaintiff’s Constitutional Claims (Counts I-IV) Independently Fail.	5
a. Plaintiff fails to state a First Amendment claim (Count I).	5
b. Plaintiff fails to state a Fourth Amendment claim (Count II).	7
c. Plaintiff Concedes that He has not Asserted an Independent Fifth Amendment Claim against the Corporate Defendants (Count III).	8
d. Plaintiff Acknowledges that He Fails to State an Independent Fourteenth Amendment Claim Against the Corporate Defendants (Count IV).	8
C. Plaintiff Fails to State a Claim for Civil Rights Conspiracy (Count V).	9
D. Plaintiff Fails to State a Claim Under RICO (Count VI).	10
E. Plaintiff’s Opposition Confirms that he Fails to State a Claim for Trade Secrets Misappropriation (Count VII).	12
F. Plaintiff Concedes that his Copyright Infringement Claim Should Be Dismissed Without Leave to Amend (Count VIII).	13
G. Plaintiff Fails to State a Claim for Breach of Contract (Count IX).	13
H. Plaintiff Fails to State a Consumer Protection Claim (Count X).	14
I. Plaintiff’s Opposition Fails to Cure the Defects in the Declaratory Judgment Claim (Count XI).	15
J. Plaintiff Fails to State a Claim Under the Wiretap Act and the Stored Communications Act (Count XII).	17

K. Plaintiff fails to state a claim under the Computer Fraud and Abuse Act (Count XIII). . 18

L. Plaintiff Admits that he Fails to State a Claim Under the California Consumer Privacy Act (Count XIV). 21

M. Plaintiff Fails to State a Claim for App Store Misrepresentation (Count XV). 21

N. Plaintiff Fails to State a Claim for Intentional or Negligent Infliction of Emotional Distress (Counts XVI and XVII). 22

O. Plaintiff Fails to State a Products Liability Claim (Count XVIII). 23

P. The TAC Should Be Dismissed Due to Improper Group Pleading (Counts I-XVIII). ... 24

III. CONCLUSION 25

TABLE OF AUTHORITIES

Cases

<i>Adler v. Loyd</i> , 496 F. Supp. 3d 269 (D.D.C. 2020)	12
<i>Ali v. Rumsfeld</i> , 649 F.3d 762 (D.C. Cir. 2011)	15-16
<i>Alice Corp. Pty. Ltd. v. CLS Bank Int’l</i> , 573 U.S. 208 (2014)	20
<i>Aref v. Lynch</i> , 833 F.3d 242 (D.C. Cir. 2016)	6
<i>Ashbourne v. Hansberry</i> , 2024 WL 3471243 (D.D.C. July 18, 2024)	9
<i>Ashcroft v. Iqbal</i> , 556 U.S. 662 (2009)	14
<i>Aston v. Johnson & Johnson</i> , 248 F. Supp. 3d 43 (D.D.C. 2017)	24
<i>Austin-Spearman v. AARP</i> , 119 F. Supp. 3d 1 (D.D.C. 2015)	21
<i>Bain v. Off. of the Att’y Gen.</i> , 648 F. Supp. 3d 19 (D.D.C. 2022)	16
<i>Bell Atl. Corp. v. Twombly</i> , 550 U.S. 544 (2007)	9
<i>Betz v. Jefferson Cap. Sys., LLC</i> , 68 F. Supp. 3d 130 (D.D.C. 2014)	23
<i>Bivens v. Six Unknown Named Agents of Federal Bureau of Narcotics</i> , 403 U.S. 388 (1971)	7
<i>Blackwood-Head v. Democratic Nat’l Comm.</i> , 2025 WL 3638162 (D.D.C. Dec. 15, 2025)	2
<i>Bolling v. Sharpe</i> , 347 U.S. 497 (1954)	8
<i>Bonner v. S-Fer Int’l, Inc.</i> , 207 F. Supp. 3d 19 (D.D.C. 2016)	22
<i>Bose v. Interclick, Inc.</i> , 2011 WL 4343517 (S.D.N.Y. Aug. 17, 2011)	20
<i>Boyd v. Target Corp.</i> , 750 F. Supp. 3d 999, 1010 (D. Minn. 2024)	14
<i>Brady v. Livingood</i> , 360 F. Supp. 2d 94 (D.D.C. 2004)	9, 10
<i>Butera & Andrews v. Int’l Bus. Machs. Corp.</i> , 456 F. Supp. 2d 104 (D.D.C. 2006)	19
<i>Canadian Transp. Co. v. United States</i> , 663 F.2d 1081 (D.C. Cir. 1980)	8
<i>Cent. Am. Bank for Econ. Integration v. Mossi</i> , 2025 WL 2732731 (D.D.C. Sept. 25, 2025) ...	11

<i>Clapper v. Amnesty Int’l USA</i> , 568 U.S. 398 (2013)	16
<i>Dart Transit Co. v. Paccar, Inc.</i> , 768 F. Supp. 3d 960 (D. Minn. 2025)	15
<i>Dennis v. Sparks</i> , 449 U.S. 24 (1980)	4, 7
<i>Dougherty v. United States</i> , 156 F. Supp. 3d 222 (D.D.C. 2016)	4
<i>Econ. Rsch. Servs., Inc. v. Resol. Econ., LLC</i> , 208 F. Supp. 3d 219 (D.D.C. 2016)	19
<i>Erickson v. Pardus</i> , 551 U.S. 89, 94 (2007)	4
<i>Est. of Mickens v. U.S. Bank Nat’l Ass’n</i> , 2021 WL 3418955 (D.D.C. Aug. 5, 2021)	25
<i>Fischer v. Dist. of Columbia</i> , 2025 WL 894445 (D.D.C. Mar. 24, 2025)	6
<i>Graphic Commc’ns Loc. 1B Health & Welfare Fund A v. CVS Caremark Corp.</i> , 850 N.W.2d 682 (Minn. 2014)	15
<i>Hatfill v. Ashcroft</i> , 404 F. Supp. 2d 104 (D.D.C. 2005)	5
<i>Jean-Baptiste v. Booz Allen Hamilton, Inc.</i> , 630 F. Supp. 3d 88 (D.D.C. 2022), <i>aff’d in part</i> , 2023 WL 2190628 (D.C. Cir. Feb. 22, 2023), <i>and rev’d and remanded on other grounds</i> , 2023 WL 3835956 (D.C. Cir. June 2, 2023)	4
<i>Lewis v. Dist. of Columbia</i> , 768 F. Supp. 3d 76 (D.D.C. 2025)	6
<i>Lewis-Burke Assocs., LLC v. Widder</i> , 725 F. Supp. 2d 187 (D.D.C. 2010)	18, 19
<i>Lujan v. Defs. of Wildlife</i> , 504 U.S. 555 (1992)	16
<i>Maloy v. Internal Revenue Serv.</i> , 2023 WL 2954439 (D.D.C. Apr. 14, 2023)	4
<i>Mazloun v. Dist. of Columbia.</i> , 442 F. Supp. 2d 1 (D.D.C. 2006)	9
<i>Moini v. Granberg</i> , 2024 WL 2106214 (D.C. Cir. May 1, 2024), <i>cert. denied</i> , 145 S. Ct. 1064 (2025)	4
<i>Pinkett v. Dr. Leonard’s Healthcare Corp.</i> , 2020 WL 1536305 (D.D.C. Mar. 31, 2020)	24
<i>Plummer v. Gallaudet Univ.</i> , 2026 WL 91692 (D.D.C. Jan. 13, 2026)	8
<i>Schilling v. Rogers</i> , 363 U.S. 666 (1960)	16
<i>Skelly Oil Co. v. Phillips Petrol. Co.</i> , 339 U.S. 667 (1950)	16

<i>Smith v. United States</i> , 843 F.3d 509 (D.C. Cir. 2016)	22
<i>Stankevich v. Kaplan</i> , 156 F. Supp. 3d 86 (D.D.C. 2016)	11
<i>Strege v. FBI</i> , 2023 WL 8275892 (D.D.C. Nov. 30, 2023)	2
<i>Thaler v. Perlmutter</i> , 130 F.4th 1039, 1046 (D.C. Cir. 2025)	20
<i>Tooley v. Napolitano</i> , 586 F.3d 1006 (D.C. Cir. 2009)	2
<i>Townsend v. United States</i> , 236 F. Supp. 3d 280 (D.D.C. 2017)	3
<i>United States v. Jacobsen</i> , 466 U.S. 109 (1984)	4, 7
<i>United States v. Price</i> , 383 U.S. 787 (1966)	4
<i>US Dominion, Inc. v. MyPillow, Inc.</i> , 2022 WL 1597420 (D.D.C. May 19, 2022)	11
<i>United States ex rel. Williams v. Martin-Baker Aircraft Co.</i> , 389 F.3d 1251 (D.C. Cir. 2004) ...	14
<i>Warner Fruehauf Trailer Co. v. Boston</i> , 654 A.2d 1272 (D.C. 1995)	23
<i>Yi Tai Shao v. Roberts</i> , 2019 WL 249855 (D.D.C. Jan. 17, 2019)	1, 2
<i>Zaccari v. Apprio, Inc.</i> , 390 F. Supp. 3d 103 (D.D.C. 2019)	12, 13

Federal Statutes

18 U.S.C. § 1030	18, 19, 20
28 U.S.C. § 2101	15
28 U.S.C. § 2201	15
42 U.S.C. § 1983	3, 4

State Statutes

Cal. Civ. Code § 1798	21
Minnesota CFA § 325F.69	14, 15

Rules

Federal Rule of Civil Procedure 9(b)	11, 14, 21
--	------------

Other Authorities

Restatement (Second) Torts § 46	22
---------------------------------------	----

I. INTRODUCTION

Plaintiff's Opposition (ECF 74) (Opp.) to the Corporate Defendants' Motion to Dismiss (ECF 70) (MTD)¹ fails to cure the fatal defects in his Third Amended Complaint (ECF 51) (TAC).² Despite amending his claims multiple times, Plaintiff still fails to articulate any plausible legal claim against Defendants. For the reasons discussed here and in the MTD, the Corporate Defendants respectfully ask the Court to dismiss the TAC with prejudice.

II. ARGUMENT

A. The Opposition Confirms the Claims Are Patently Insubstantial (Counts I-XVIII).

Plaintiff argues that his claims are not patently insubstantial because they rely on “primary-source records” and “published code.” Opp. 16-20. But Plaintiff does not identify anything in these alleged sources that plausibly suggests that the President of the United States, the United States House of Representatives, the Attorney General, the Speaker of the House, the FCC Chairman, Anthropic, OpenAI, Apple, Comcast, and METR conspired to surveil him, misappropriate his “peace” technology, and interfere with his litigation activities. Plaintiff's exhibits do not bridge that gap. *See Yi Tai Shao v. Roberts*, 2019 WL 249855, at *15-16 (D.D.C. Jan. 17, 2019) (dismissing claims that defendants, including government officials “at all levels,” surveilled the plaintiff, suspended email services, hacked and removed litigation-related emails, and/or otherwise engaged in a national conspiracy).³

¹ Citations to specific pages of the MTD refer to the Memorandum in Support of the Corporate Defendants' Motion to Dismiss (ECF 70-1). Unless otherwise noted, all references to page numbers in docketed pleadings refer to the CM/ECF page number stamped at the top of the page.

² The Corporate Defendants are Anthropic, PBC (Anthropic); Apple Inc. (Apple); Comcast Cable Communications, LLC (Comcast); OpenAI Foundation (f/k/a OpenAI, Inc.) (OpenAI); and Model Evaluation and Threat Research (METR).

³ Plaintiff contends that the FBI agents terminated his calls because they objected to being recorded, not because they evaluated his evidence and found it “not credible.” Opp. 20-21. Regardless, the alleged refusals do not plausibly connect any Corporate Defendant to the

Plaintiff's attempts to distinguish Defendants' authorities similarly fail. Opp. 17. The passages Plaintiff quotes from *Yi Tai Shao* are irrelevant, arising in a discussion of personal jurisdiction, not subject-matter jurisdiction. 2019 WL 249855, at *10. Likewise, the "uncertain origins" language from *Tooley v. Napolitano*, 586 F.3d 1006, 1010 (D.C. Cir. 2009), which Plaintiff quotes, describes a different case. Moreover, while Plaintiff attempts to distinguish *Strege* and *Blackwood-Head* by claiming that those cases had no "verifiable anchor" (Opp. 17), he identifies no case in which allegations resembling his own survived dismissal.

Plaintiff's reliance on his retention of an archivist to examine a "1607 Star Chamber decision" fares no better. Opp. 18. Even if accepted as true, Plaintiff's seventeenth-century research has no bearing on whether Defendants stole his alleged intellectual property or engaged in a mass surveillance and retaliation campaign against him. *See* ECF 73-2; ECF 73-3.⁴

Finally, Plaintiff attempts to demonstrate a relationship among the Corporate Defendants by alleging that METR evaluated Anthropic's compliance with certain White House projects. Opp. 21. That allegation undermines his conspiracy narrative rather than supports it. A third-party evaluator retained to assess compliance is, by definition, separate from the entity being evaluated. An arms-length evaluation is the opposite of common ownership, common control, or coordinated decision-making.⁵ Accordingly, this Court should dismiss this case with prejudice.

conspiracy alleged in the TAC.

⁴ Indeed, the archivist himself admits that he has "only a basic understanding of the significance of the case to American jurisprudence." ECF 73-3 at ¶ 11.

⁵ Plaintiff has also failed to establish personal jurisdiction over METR, which is a Delaware-registered, California-headquartered organization. Plaintiff's sole jurisdictional theory is that Paul Christiano, whom Plaintiff calls METR's "co-founder"—now serves at the NIST AI Safety Institute in this district. Opp. 46. That theory fails. As METR noted in the MTD, Beth Barnes, not Christiano, is the founder of METR; and Plaintiff conflates METR with a predecessor organization. Even accepting Plaintiff's version, Mr. Christiano's government employment is **not** contact between METR and the forum. In sum, Plaintiff has not carried his burden to establish this Court's jurisdiction over METR.

B. Plaintiff Still Fails to State a Viable Claim Under 42 U.S.C. § 1983 (Counts I-IV).

i. Plaintiff Concedes that He Cannot Sue the Corporate Defendants Under 42 U.S.C. § 1983 (Counts I-IV).

Section 1983 applies to those acting under the authority of a state government or the District of Columbia, not the federal government.⁶ See *Townsend v. United States*, 236 F. Supp. 3d 280, 325 (D.D.C. 2017); MTD 16-18 (collecting cases). Plaintiff concedes that he cannot pursue his constitutional claims under § 1983 because he alleges that the Corporate Defendants coordinated with federal—not state—actors. Opp. 22-26. First, Plaintiff admits that his claims rest on “coordination between *federal officials* and *private entities*.” Opp. 22 (emphasis added). Second, Plaintiff acknowledges that “conduct under the color of *federal* law is not cognizable under Section 1983.” *Id.* (emphasis added). These concessions are fatal to the § 1983 claims.

Plaintiff does not cure this defect by invoking Comcast’s regulatory relationship with the FCC. Comcast argued that regulation alone cannot transform a private company into a state actor (MTD 17-18), and Plaintiff responds with the conclusory assertion that he alleged “government action triggering Fourth Amendment protections in the pleaded FCC-Comcast surveillance.” Opp. 23 (citation modified). But that argument is deficient on its face. The FCC is a federal agency, not a state actor, and Plaintiff’s repeated invocation of “FCC-Comcast surveillance” is an irrelevant legal conclusion untethered to any factual allegations. That Comcast operates in a regulated industry does not make it a government actor.⁷ MTD 17-18 (collecting cases).

⁶ Plaintiff falsely suggests that the Corporate Defendants and the Federal Defendants’ respective motions to dismiss are inconsistent concerning the applicability of § 1983. Opp. 22. Not true. Both the Corporate Defendants and the Federal Defendants argue that Plaintiff cannot rely on § 1983 because he is alleging conduct under the color of federal law, not under the authority of any state government. Compare MTD 16-18, with ECF 69 at 26-27.

⁷ Having admitted that his constitutional claims are not cognizable under § 1983, Plaintiff incorrectly suggests that the Court must construe his complaint “to state whatever claim its factual

The TAC also alleges no conduct by METR that could constitute state action. METR is a nonprofit evaluator that publishes research, and Plaintiff does not allege that METR surveilled him, misappropriated his work, interfered with his speech, or took any action directed at him. The Opposition’s generalized discussion of coordination (Opp. 24-26) identifies no METR conduct directed at Plaintiff and METR’s private research and evaluation activities cannot support a § 1983 claim. *See* TAC ¶¶ 36, 111-17; MTD 16-18.

Plaintiff’s cited cases do not help him. *See* Opp. 23. Both *Dennis v. Sparks*, 449 U.S. 24, 28 (1980) (involving bribery of a state judge) and *United States v. Price*, 383 U.S. 787, 793, 795 (1966) (involving joint action with state officers in kidnapping and murder) involved state actors. Plaintiff’s reliance on *United States v. Jacobsen*, 466 U.S. 109 (1984), is misplaced. Opp. 23; *see* Opp. 32. That decision expressly recognized that the actions of private individuals “did not violate the Fourth Amendment because of their private character.” *Jacobsen*, 466 U.S. at 115. *Jacobsen* underscores that private conduct ordinarily falls outside the scope of constitutional protections, absent genuine governmental involvement. Plaintiff’s Section 1983 claims should be dismissed.

allegations support.” Opp. 24 (citing *Erickson v. Pardus*, 551 U.S. 89, 94 (2007)). Specifically, Plaintiff suggests that if he has “misdesignated” his § 1983 claims, the Court should simply construe them as Fourth Amendment or §1985 claims instead. *Id.* Although *pro se* complaints are liberally construed, an unrepresented plaintiff cannot concoct a “confused and rambling narrative of charges and conclusions” and hope something sticks. *Maloy v. Internal Revenue Serv.*, 2023 WL 2954439, at *2 (D.D.C. Apr. 14, 2023). Accordingly, this Court is “not required to infer new legal claims from [a *pro se* litigant’s] factual references.” *See Moini v. Granberg*, 2024 WL 2106214, at *4 (D.C. Cir. May 1, 2024), *cert. denied*, 145 S. Ct. 1064 (2025). Further, the Court “cannot supply a cause of action that the plaintiff did not plead.” *Id.* Instead, “[e]ven *pro se* plaintiffs must articulate a cause of action for their claims to give defendants fair notice of the grounds on which the claim rests.” *Jean-Baptiste v. Booz Allen Hamilton, Inc.*, 630 F. Supp. 3d 88, 95 (D.D.C. 2022), *aff’d in part*, 2023 WL 2190628 (D.C. Cir. Feb. 22, 2023), *and rev’d and remanded on other grounds*, 2023 WL 3835956 (D.C. Cir. June 2, 2023) (citing *Dougherty v. United States*, 156 F. Supp. 3d 222, 235-36 (D.D.C. 2016)). Even if the Court were to liberally interpret Plaintiff’s TAC as asserting causes of action directly under the United States Constitution, those claims independently fail for the reasons described in §§ II.B.ii.a-d below and in the MTD.

ii. Plaintiff’s Constitutional Claims (Counts I-IV) Independently Fail.

a. Plaintiff fails to state a First Amendment claim (Count I).

Plaintiff’s Opposition confirms that his First Amendment claim is deficient. A retaliation claim requires plausible allegations that Defendants engaged in conduct that would deter a person of ordinary firmness from engaging in protected speech. *See* MTD 19. Plaintiff has not done so. Instead, he argues that because the deterrence inquiry is an objective one, “whether *this* Plaintiff was in fact deterred is not the test.” Opp. 26. This is incorrect. The objective “ordinary firmness” standard does not disregard the actual plaintiff’s conduct. Courts consider whether the plaintiff’s own speech was in fact chilled in assessing whether the alleged conduct would deter an ordinary person from engaging in protected activity. *See Hatfill v. Ashcroft*, 404 F. Supp. 2d 104, 118-19 (D.D.C. 2005) (“The widely accepted standard for assessing whether harassment for exercising the right of free speech is actionable depends on whether the harassment is likely to deter a person of ordinary firmness from that exercise. In this case, it appears that Dr. Hatfill’s free speech has not been chilled in any manner, as he has continued to protest the government’s actions.” (citation modified)); *see also* MTD 20 (collecting cases). Plaintiff’s continued speech highlights the absence of any meaningful chilling effect and confirms the implausibility of his claim.

Plaintiff cites no authority holding that the types of conduct alleged here would deter a person of ordinary firmness from engaging in protected speech. Opp. 26. Plaintiff points to a source-code “prefix” and an alleged network interruption of a “draft Petition-Clause correspondence” and declares that conduct would deter an ordinary person. *Id.* He cites no authority holding that a network interruption or an alleged coding artifact constitutes the type of adverse action necessary to support a First Amendment retaliation claim. *Id.*

Plaintiff also fails to plausibly allege retaliatory motive. He argues that he has adequately

pleaded motive because there was allegedly “no legitimate business purpose” for Comcast to supposedly “throttle” one VPN tunnel but not another. Opp. 28 (citation modified). But that does not identify a motive. Rather, Plaintiff assumes that because he cannot explain the difference in performance between the two tunnels, Comcast must have intentionally targeted him. That difference, standing alone, does not plausibly suggest that Comcast intentionally selected one tunnel because it carried Plaintiff’s protected litigation activity. Plaintiff does not allege that Comcast knew the encrypted tunnel carried supposed litigation communications, that Comcast personnel made any statement concerning Plaintiff’s speech, or that Comcast altered Plaintiff’s service in response to that speech. Because Plaintiff fails to plead facts supporting an improper motive, his First Amendment claim fails. *Fischer v. Dist. of Columbia*, 2025 WL 894445, at *10 (D.D.C. Mar. 24, 2025) (“Fischer has not plausibly alleged improper motive.”); *Lewis v. Dist. of Columbia*, 768 F. Supp. 3d 76, 113 (D.D.C. 2025) (“[T]he factual allegations set forth in the amended complaint do not suggest that Defendants engaged in the allegedly illegal conduct in retaliation for [the] speech”).

The same is true with respect to Anthropic. Plaintiff alleges that Anthropic “throttled” access to its services when Plaintiff was working on his constitutional scholarship and litigation documents. TAC ¶ 198; Opp. 26-30. He does not, however, allege facts beyond unsupported speculation to show that Anthropic slowed its services in response to anything he said or did. *See* TAC ¶ 198; Opp. 26-30. Thus, he has not plausibly alleged a causal link between the exercise of a constitutional right and an alleged adverse action. *See Aref v. Lynch*, 833 F.3d 242, 258 (D.C. Cir. 2016).

METR is even further removed from this retaliation theory. Plaintiff alleges no retaliatory conduct, adverse action, retaliatory motive, or causal link involving METR. The TAC alleges only

that METR failed to publish later safety evaluations, which is not adverse action directed at Plaintiff and cannot support a retaliation claim. *See* TAC ¶¶ 36, 111-17; Opp. 27-30.

b. Plaintiff fails to state a Fourth Amendment claim (Count II).

Plaintiff's Fourth Amendment argument is similarly deficient. The Fourth Amendment is "wholly inapplicable to a search or seizure, even an unreasonable one, effected by a private individual not acting as an agent of the Government or with the participation or knowledge of any governmental official." *Jacobsen*, 466 U.S. at 113 (1984) (citation modified).⁸ Plaintiff's Opposition does not overcome that threshold requirement.⁹

As to Comcast, Plaintiff's Opposition repeats the conclusory assertion that there was "FCC-Comcast coordination." Opp. 32. But "coordination" is the conclusion Plaintiff must plausibly support, not a factual allegation that establishes governmental involvement. Plaintiff identifies no request, instruction, communication, agreement, participation, or knowledge by any FCC official concerning Comcast's alleged router access, throttling, or other network activity. Nor does Plaintiff allege facts showing that the FCC directed or controlled any challenged Comcast conduct. The FCC's regulation of Comcast does not plausibly transform Comcast's alleged network activity into governmental action. *See Jacobsen*, 466 U.S. at 113.

With respect to Anthropic and OpenAI, Plaintiff alleges that they built and operated an AI platform for the government. Opp. 31-32. Plaintiff does not, however, allege facts sufficient to show any coordination between Anthropic or OpenAI and the federal government with respect to

⁸ As explained *supra* in Section II.B.i., Plaintiff's reliance on *Dennis* (Opp. 23, 32) is misplaced.

⁹ Plaintiff argues that *Page* and *Jean-Baptiste* are inapplicable because those cases involved *Bivens* claims against federal officials. Opp. 31. But Defendants cited those cases only to demonstrate that, *even if* Plaintiff's allegations were construed as asserting a *Bivens* claim, such a claim would be foreclosed by those authorities. MTD 21. In any event, Plaintiff now expressly disavows any *Bivens* theory. Opp. 31. Accordingly, the issue is moot.

the surveillance Plaintiff alleges. *Id.* Plaintiff’s unsupported and implausible assumption that he was surveilled cannot support a plausible Fourth Amendment claim.

c. Plaintiff Concedes that He has not Asserted an Independent Fifth Amendment Claim against the Corporate Defendants (Count III).

As Plaintiff correctly acknowledges, the Fifth Amendment restrains federal government action, not conduct by private entities. Opp. 32; *see Plummer v. Gallaudet Univ.*, 2026 WL 91692, at *5 (D.D.C. Jan. 13, 2026) (citing *Canadian Transp. Co. v. United States*, 663 F.2d 1081, 1093 (D.C. Cir. 1980)). Plaintiff disclaims any allegation that the Corporate Defendants independently violated due process as private entities. Opp. 32. (“Plaintiff’s due-process theory is directed at the federal coordination pleaded in the conspiracy and statutory counts; to the extent the motion treats Count III as a freestanding claim that a private firm violated due process, Plaintiff does not press that narrow construction . . .”). That concession is fatal to Plaintiff’s Fifth Amendment Claim. Plaintiff instead contends his conspiracy, wiretap and stored communications, and computer fraud claims demonstrate coordination between the Corporate Defendants and the federal government. As discussed below and in the MTD, those claims independently fail.

d. Plaintiff Acknowledges that He Fails to State an Independent Fourteenth Amendment Claim Against the Corporate Defendants (Count IV).

The Fourteenth Amendment “applies only to the states,” and not the federal government. *Bolling v. Sharpe*, 347 U.S. 497, 499 (1954). Plaintiff admits that he is not alleging that any of the Corporate Defendants acted on behalf of any state or in coordination with any state. Opp. 33-34. (“The states-only legal question is routed, as with the other constitutional counts, through the coordination and federal-action theory rather than as a claim that a private firm is a state.”). Moreover, Plaintiff does not allege that he was deprived of any protected right under the Fourteenth Amendment such as life, liberty, or property. TAC Count IV; Opp. 33-34. Instead, he alleges that

Anthropic employees received better service on the platform than other customers. *See, e.g.*, TAC ¶¶ 60(g), 69, and 190; Opp. 33-34. To the extent Plaintiff alleges that he has identified actionable rights in the breach of contract and intellectual property claims in Counts IX and VII of the TAC, those claims independently fail for the reasons discussed below and in the MTD.

C. Plaintiff Fails to State a Claim for Civil Rights Conspiracy (Count V).

As an initial matter, Plaintiff concedes that without a predicate constitutional claim, his civil conspiracy claim fails. Opp. 34; *see Mazloun v. Dist. of Columbia.*, 442 F. Supp. 2d 1, 11 (D.D.C. 2006). Because the constitutional claims in Counts I-IV of the TAC all fail as a matter of law, Plaintiff's civil rights conspiracy claim also fails. *See supra* Sections II.B.ii.a-d.

Moreover, Plaintiff has not adequately alleged a conspiracy. *Cf. Brady v. Livingood*, 360 F. Supp. 2d 94, 104 (D.D.C. 2004). Plaintiff's assertion of coordination because the same alleged IP address appeared in multiple contexts is unavailing. Opp. 35; *see* TAC ¶¶ 53, 102, 222. Plaintiff alleges no facts showing that Defendants jointly owned, controlled, accessed, or used the alleged endpoint, or communicated or agreed concerning it. Indeed, Plaintiff alleges that the address appearing in certain RST packets was "spoofed." Opp. 35. But a spoofed source address does not plausibly identify the entity that generated the packet, much less establish an agreement among Defendants. At most, Plaintiff alleges independent conduct and implausibly infers an agreement from a purported common technical reference. That fails to state a conspiracy claim. *See Bell Atl. Corp. v. Twombly*, 550 U.S. 544, 556 (2007) (finding "an allegation of parallel conduct and a bare assertion of conspiracy will not suffice"); *Ashbourne v. Hansberry*, 2024 WL 3471243, at *7 (D.D.C. July 18, 2024) (rejecting allegations that alleged co-conspirators "behaved similarly").¹⁰

¹⁰ Comcast was not explicitly named in this claim anywhere in the TAC (¶¶ 210-19). Indeed, Anthropic was the only Corporate Defendant identified in Plaintiff's conspiracy claim. Plaintiff mentions Comcast for the first time in his Opposition and makes the conclusory assertion that

As to Anthropic, Plaintiff alleges that “policy and code were modified within days of specific litigation events.” Opp. 34. Plaintiff does not, however, allege facts to show any causal link between the two events. Instead, he relies on speculation and conjecture.¹¹

Nor can Plaintiff rely on the asserted “reactive timing” theory as to METR. *See* Opp. 34-35. The TAC alleges that METR’s last published evaluation was in January 2025, three months before Plaintiff began his investigation, so the alleged evaluation gap predates the events Plaintiff claims prompted Defendants’ reactions and supplies no temporal correlation suggesting that METR acted in response to Plaintiff. Plaintiff alleges no facts or provides any evidence to the contrary. *See* TAC ¶¶ 17, 25; Opp. 34-35.

Plaintiff’s argument asserting injury also fails. He argues that the Bondi Memo “recharacterized” Plaintiff’s protected action as criminal activity (Opp. 34), but he does not allege that he was ever charged or investigated for his “recharacterized” activity. Again, the Bondi Memo is a directive to the FBI at large to investigate certain clearly illegal actions, not a targeted instruction against Plaintiff. As there is no valid underlying constitutional claim, no meeting of the minds, and no injury; there is no claim for conspiracy, and Count V should be dismissed.

D. Plaintiff Fails to State a Claim Under RICO (Count VI).

Plaintiff’s RICO claims in Count VI fail because he has pleaded neither an enterprise nor sufficient predicate acts. Plaintiff instead relies on an alleged “Datadog endpoint” as the supposed link between otherwise independent actors. Opp. 36. As explained above, the existence of a common network endpoint does not plausibly suggest coordinated action. *See supra* Section II.C.;

Comcast “selectively throttled” the same IP address allegedly used by Anthropic. As explained above, this bare allegation is not sufficient to plead a conspiracy claim.

¹¹ Plaintiff’s allegations concerning a conspiracy between Anthropic and Datadog, who is not a party to this matter at all, are irrelevant. Opp. 35; *see Brady*, 360 F. Supp. 2d at 104.

cf. US Dominion, Inc. v. MyPillow, Inc., 2022 WL 1597420, at *5 (D.D.C. May 19, 2022) (dismissing RICO claim and rejecting argument that an “intertwined and shared corporate history between . . . two businesses satisfies the [enterprise] requirement” (citation modified)). Plaintiff does not allege Defendants jointly owned, controlled, or used the alleged endpoint, or that their separate activities were coordinated through it. Accepting Plaintiff’s theory would dramatically expand RICO liability, transforming countless technology companies that use common internet infrastructure, cloud services, or network endpoints into members of a RICO enterprise.

The conduct Plaintiff alleges highlights the flaw in his contrived theory. While Plaintiff claims that he alleges more than a mere “grievance list,” his Opposition confirms otherwise. Opp. 36. Rather than identifying the organizational and decision-making structure of the alleged enterprise, Plaintiff catalogs actions he attributes to Anthropic and Comcast separately. *Id.* at 38-39.¹² Indeed, he expressly acknowledges that Comcast’s alleged “acts are its own and occur on its own network.” *Id.* at 39. Allegations of independent conduct by different defendants, without facts linking them as an organized enterprise, do not establish a RICO enterprise. *See Stankevich v. Kaplan*, 156 F. Supp. 3d 86, 93, 94 (D.D.C. 2016) (dismissing plaintiff’s RICO claim where he “simply list[ed] grievances he has with each party”). Importantly, Plaintiff does not explain how any of the Defendants’ alleged acts rise to the level of **fraud** or furthered the alleged enterprise rather than the individual actors. *Cf.* MTD 26-29; *see also Cent. Am. Bank for Econ. Integration v. Mossi*, 2025 WL 2732731, at *14 (D.D.C. Sept. 25, 2025) (finding heightened pleading standard of Rule 9(b) apply to fraud as RICO predicate acts).¹³

Nor can Plaintiff cure these deficiencies by simply alleging that Defendants shared a

¹² Plaintiff does not even mention the other three Corporate Defendants in his Opposition.

¹³ Again, Plaintiff’s allegations concerning non-parties are completely irrelevant. Opp. 36.

common motive. Plaintiff's assertion that Defendants shared a purpose of "surveilling and suppressing Plaintiff's protected activity and misappropriating his framework" is conclusory and unsupported by facts plausibly showing coordinated action. Opp. 37.

Finally, Plaintiff argues that his allegations do not involve a "single short-lived scheme of a few acts against one victim," but are "directed at a class of users." Opp. 37-38. The TAC states otherwise. TAC ¶ 227 (alleging the "deployment" starting in August 2025 was the "targeting of a single identified plaintiff-witness"). Yet Plaintiff identifies no other "user" whose framework was allegedly misappropriated and who was then subjected to retaliation. These allegations are insufficient. *Adler v. Loyd*, 496 F. Supp. 3d 269, 281 (D.D.C. 2020) (dismissing RICO claims where plaintiffs "alleged a single scheme of twelve predicate acts over a few months—two years at the most" that involved only "nine victims"). This claim should be dismissed.

E. Plaintiff's Opposition Confirms that he Fails to State a Claim for Trade Secrets Misappropriation (Count VII).

The Opposition does not cure the defects of the trade secret-misappropriation claim.

First, Plaintiff has not plausibly alleged that the LOE Framework is a trade secret. The TAC and Opposition fail to explain what the Framework is, what parts of it are secret, and what aspects of the Framework the Corporate Defendants allegedly took. Opp. 39-40. Nor does Plaintiff identify facts that the Framework derives independent economic value from its secrecy. His claimed lost licensing revenue and unjust enrichment are conclusory. *Id.*; TAC ¶ 188.

Second, Plaintiff's Opposition reinforces that he has not pleaded sufficient facts to show that he took reasonable measures to keep the LOE Framework a secret. Opp. 39-40. Plaintiff does not dispute that he shared the Framework with AI platforms, including Anthropic, during development and testing. *Id.* That concession is fatal to Plaintiff's trade secret claim. *See Zaccari v. Apprio, Inc.*, 390 F. Supp. 3d 103, 114 n.10 (D.D.C. 2019) (holding that the plaintiff failed to

state a claim for trade secrets misappropriation where he admitted that he “disclosed the source code and application to the government”). Although Plaintiff points to certain provisional patent applications, those applications did not notify Anthropic that the information he allegedly supplied was confidential or subject to restrictions on its use. Opp. 39-40. Plaintiff also relies on Anthropic’s Terms of Service to suggest that Anthropic had agreed not to train its model using data that is not publicly available and then later changed its policy. TAC ¶¶ 239-45; Opp. 39-40. But the allegation does not establish that Anthropic – or any Corporate Defendant – knew that the Framework was confidential or not public.

Plaintiff has also failed to plausibly allege misappropriation by Anthropic or any Corporate Defendant. He claims that Anthropic trained its model using his Framework, but identifies no model, product, or feature that incorporated it. TAC ¶¶ 237-54. Nor does he allege facts showing that Anthropic acquired the Framework through improper means or used it in breach of a duty to maintain its secrecy. *Id.*; see *Zaccari*, 390 F. Supp. 3d at 114 n.10 (dismissing a complaint where the plaintiff failed to allege that the defendant acquired or disclosed the alleged trade secret by any improper means). Plaintiff’s trade secret claim should therefore be dismissed.

F. Plaintiff Concedes that his Copyright Infringement Claim Should Be Dismissed Without Leave to Amend (Count VIII).

Plaintiff “does not oppose dismissal of Count VIII.” Opp. 40. He also acknowledges that the pleading defects raised in the MTD (*see* MTD 32-33) “cannot be cured by amending the . . . complaint.” Opp. 41. Plaintiff’s copyright claim should be dismissed without leave to amend.

G. Plaintiff Fails to State a Claim for Breach of Contract (Count IX).

Plaintiff’s Opposition does not cure the defects in his breach of contract claim.¹⁴ He fails

¹⁴ Plaintiff seemingly drops this claim with respect to Apple. Opp. 42 (“As to the Apple limb, Plaintiff does not press Count IX against Apple as a separate contract.”).

to establish the existence of any binding and enforceable contract. Opp. 41-42. Plaintiff does not allege mutual assent to material terms, identify the specific obligations imposed by the alleged contracts, or explain which obligation each Corporate Defendant supposedly breached. *Id.* He also offers nothing beyond speculative injury or damages. *Id.* The claim should be dismissed.

H. Plaintiff Fails to State a Consumer Protection Claim (Count X).

Plaintiff claims he satisfied Rule 9(b)'s heightened pleading requirements, claiming particularity "is in the record [Defendants] declined to read." Opp. 43 (citing TAC ¶ 44; ECF 51-13 ¶¶ 108, 112). Although neither Defendants nor the Court are obligated to hunt through thousands of pages of exhibits to find support for Plaintiff's claims, the cited paragraphs do not allege fraud with particularity. They instead discuss a so-called "temporal alignment" and "enforcement void," apparently referring to prosecutors' refusal to entertain Plaintiff's criminal referrals. *See* TAC ¶ 43; ECF 51-13 ¶¶ 108, 112. Plaintiff's failure to allege fraud with the necessary particularity requires dismissal. *See United States ex rel. Williams v. Martin-Baker Aircraft Co.*, 389 F.3d 1251, 1256-57 (D.C. Cir. 2004) (affirming dismissal with prejudice of a claim under the False Claims Act for failure to plead with particularity).

Plaintiff's Minnesota CFA claim also fails on the merits, and the Opposition does nothing to rectify it. *See* MTD 35-37. Plaintiff's assertion that the public benefit and intent requirements are satisfied because they need only be "alleged" contradicts his own admission that they must satisfy Rule 9(b)'s heightened pleading standard. Opp. 43-44; *see Boyd v. Target Corp.*, 750 F. Supp. 3d 999, 1010, 1017 (D. Minn. 2024) (applying Rule 9(b) to the intent requirement of a Minnesota CFA § 325F.69 claim). They must also be alleged *plausibly*. *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009). Neither is true here.

Plaintiff does not dispute that he must allege a public benefit to make out a claim under

CFA subdivision 1. *See Dart Transit Co. v. Paccar, Inc.*, 768 F. Supp. 3d 960, 975-76 (D. Minn. 2025) (plaintiff must allege a public benefit to allege a Minnesota CFA claim). Yet the Opposition fails to meaningfully address this fatal pleading deficit discussed in the MTD. *See* MTD 25; Opp. 42-44. There is no public benefit to this litigation, which amounts to allegations that Defendants stole his intellectual property, “gasli[t]” him by disagreeing with his conspiracy theories and imposed rate limits that prevented him from churning out AI-generated content *for this litigation*. TAC ¶¶ 147, 157, 160, 261, 268, 292. The absence of public benefit is further underscored by enforcement agencies’ refusals to entertain his complaints. *Id.* ¶ 268.

Plaintiff also fails to identify any fraudulent misrepresentation that *any* Corporate Defendant made to induce consumer reliance “in connection with the sale of any merchandise.” Minn. CFA § 325F.69, subd. 1. The Opposition alleges that “the misrepresentations were made in connection with the sale of” a paid software subscription (Opp. 43), with no attempt to explain what exactly those misstatements were or who made them. Insofar as they involve “undisclosed gating axes,” “classifier processing,” and “fallback-route header discrimination” (*id.*), neither the TAC nor the Opposition shed light on what these terms mean, how they could induce consumers to purchase their software, or what “special circumstances exist[ed]” to “trigger a legal or equitable duty to disclose” any omitted facts. *Graphic Commc’ns Loc. 1B Health & Welfare Fund A v. CVS Caremark Corp.*, 850 N.W.2d 682, 695 (Minn. 2014). This count should be dismissed.

I. Plaintiff’s Opposition Fails to Cure the Defects in the Declaratory Judgment Claim (Count XI).

Plaintiff’s Opposition does not cure the fundamental defects in his declaratory judgment claim against METR. Plaintiff’s correction of Count XI’s statutory basis does not save the claim. Opp. 44-45. Whether the claim is under 28 U.S.C. § 2201 or § 2101(f), it requires the same showing: a live, judicially remediable right. *See Ali v. Rumsfeld*, 649 F.3d 762, 778 (D.C. Cir.

2011); *Skelly Oil Co. v. Phillips Petrol. Co.*, 339 U.S. 667, 671 (1950); *see also Schilling v. Rogers*, 363 U.S. 666, 677 (1960). Plaintiff identifies no controversy between himself and METR because Plaintiff identifies no legal obligation that METR owed him. Plaintiff’s conclusory allegations that METR is “captured,” “conflicted,” and a “de facto regulator” do not establish a legal obligation METR owed to Plaintiff. *See* TAC ¶¶ 36, 111-17, 343. Nor may Plaintiff require the Court and Defendants to construct Plaintiff’s theory from his exhibits. *See Bain v. Off. of the Att’y Gen.*, 648 F. Supp. 3d 19, 29 (D.D.C. 2022).

Further, Plaintiff lacks standing. His alleged injury rests on METR’s role as a third-party evaluator of Anthropic’s compliance with the White House Voluntary Commitments, and on the allegation that METR published an evaluation of Anthropic in January 2025 and did not publish evaluations of later model releases. Opp. 44; *see* Opp. 21, TAC ¶ 115. But this alleged “evaluation gap” was not directed at Plaintiff, does not plausibly trace any of Plaintiff’s asserted injuries to METR, and would not be redressed by the requested declaratory judgment. His assertion that his injury “runs through” METR’s evaluation function describes an attenuated and unestablished chain of possibilities, not a concrete and particularized injury attributable to METR. The TAC does not allege that Plaintiff was evaluated by METR, purchased or used a METR product or service, communicated with METR, or had any other direct relationship with it; his theory therefore depends on multiple speculative links between METR’s independent research and alleged conduct by other Defendants. *See Lujan v. Defs. of Wildlife*, 504 U.S. 555, 562 (1992) (when the asserted injury depends on the actions of a third party, “much more is needed” to establish traceability as an element of standing); *Clapper v. Amnesty Int’l USA*, 568 U.S. 398, 410 (2013) (a “highly attenuated chain of possibilities” does not establish a “certainly impending” injury). Count XI fails on the pleadings regardless of METR’s independence.

J. Plaintiff Fails to State a Claim Under the Wiretap Act and the Stored Communications Act (Count XII).

Plaintiff's Opposition does not cure the defects in his Wiretap Act and Stored Communications Act claims. *See* MTD 39-44. Both statutes require a plaintiff to plausibly allege that the defendant acted intentionally. *See* MTD 29, 42-43. Plaintiff's claims fail under either statute because he offers generalized and conclusory allegations that fall short of showing that any Defendant intentionally intercepted or accessed without authorization any of his communications.

In his Opposition, Plaintiff limits his wiretap and stored communications allegations to Defendants Anthropic and Apple.¹⁵ *Opp.* 46-49. However, Plaintiff fails to allege the facts necessary to establish the essential elements of a wiretap claim because he articulates no facts to show that either Anthropic or Apple intentionally intercepted or accessed without authorization any of his communications. As to Anthropic, Plaintiff alleges that "unprotected" telemetry pipelines "intercept user credentials" and that "Anthropic converts its customers' innovation into its own paid products." TAC ¶ 274-75. He does not, however, identify what specific communications he was having, and he does not allege facts to show that these purported communications were, in fact, intercepted by Anthropic. *Id.* In his Opposition, Plaintiff generically states that messages are "transmitted to Anthropic's servers through the append SessionLog() function at session ingress" *Opp.* 46. The Opposition does not bridge the gap and create a plausible claim against Anthropic. With respect to Apple, Plaintiff alleges in the TAC that Apple's "Floodgate Proxy infrastructure intercepts all IA traffic" TAC ¶ 92. Plaintiff claims that messages are "transmitted to api.anthropic.com/v1/messages and captured traversing Apple's Xcode Intelligence integration" *Opp.* 46. These allegations do not show that either

¹⁵ Plaintiff drops this claim against Comcast. *Opp.* 48 (admitting that Comcast's conduct does not include the "interception of message contents").

Anthropic or Apple took any affirmative, willful action to intercept or access the contents of Plaintiff's communications. At most, Plaintiff alleges that messages were transmitted through AI platforms that he elected to use. These generic allegations cannot support a claim under the Wiretap Act or Stored Communications Act, and Count XII of the TAC should be dismissed.

K. Plaintiff fails to state a claim under the Computer Fraud and Abuse Act (Count XIII).

Plaintiff purports to assert CFAA claims against both Comcast and Anthropic, but his allegations fall short as to both.

With respect to Comcast, Plaintiff fails to allege unauthorized or exceeded access. Both CFAA provisions that Plaintiff invokes require intentionally accessing a computer without authorization or exceeding authorized access. 18 U.S.C. §§ 1030(a)(2), (a)(4); *see Lewis-Burke Assocs., LLC v. Widder*, 725 F. Supp. 2d 187, 191 (D.D.C. 2010). Although Plaintiff contends that Comcast lacked authorization to reconfigure his personally owned GL-MT6000 router (Opp. 49), he pleads no facts showing that Comcast ever accessed, let alone reconfigured, that device. Instead, the “log records” on which he relies concern entirely different equipment: Comcast's Xfinity routers. ECF 57 at 16-17 (identifying the devices implicated by the alleged TR-069 activity as Xfinity XB7-CM and XB8-T routers and describing Exhibit D-20 (ECF 51-54 at 109) as an administrative-session log from Xfinity XB7). Plaintiff alleges a lack of authorization with respect to one device, but the supposed reconfiguration involved different devices altogether. His theory therefore fails because the alleged restriction and alleged access do not concern the same computer. *Cf. Lewis-Burke*, 725 F. Supp. 2d at 193 (“[T]here is no allegation that Widder accessed *his Lewis-Burke computer* or the server after his employment with it ended.” (emphasis added)).

As to the Xfinity routers, Plaintiff's argument regarding the “Remote Management setting” is similarly deficient. Opp. 49-50 (citation modified). He points to log entries reflecting

administrator sessions, “mso” logins, and password changes, and assumes Comcast must have caused those events. *Id.* But the logs do not say that Comcast initiated the activity or that it occurred through TR-069. ECF 57 at 16-17; ECF 57-2. Those are Plaintiff’s speculations, not facts reflected in the logs themselves. Plaintiff’s argument also assumes that disabling the “Remote Management” setting prevented Comcast from accessing the equipment. But he never identifies any policy, agreement, technical document, or equipment rule stating that disabling the setting barred Comcast from performing the actions he describes. *Cf. Econ. Rsch. Servs., Inc. v. Resol. Econ., LLC*, 208 F. Supp. 3d 219, 232 (D.D.C. 2016) (“[T]he Complaint does not allege that any defendant accessed . . . ERS data that the accesser did not have permission to obtain.”).

Plaintiff also fails to allege that Comcast acted knowingly. Plaintiff claims “overridden control,” repeated operator logins, and two password changes are evidence of knowledge. Opp. 50. Those allegations show, at most, that activity occurred on the equipment. They do not plausibly suggest that Comcast caused that activity, much less participated knowingly. Comcast, Plaintiff’s ISP, is not alleged to have stolen Plaintiff’s purported world “peace” technology and has no apparent stake in surveilling him. *See Butera & Andrews v. Int’l Bus. Machs. Corp.*, 456 F. Supp. 2d 104, 110 (D.D.C. 2006) (finding “it is more reasonable to conclude that an act is intentional for the purpose of the relevant statutes when it serves a party’s self-interest” (citation modified)). Plaintiff fails to allege any plausible motive with respect to Comcast.

Plaintiff’s allegations also fail to satisfy the CFAA’s acquisition requirement. Sections 1030(a)(2)(C) and (a)(4) require more than unauthorized access; they require that the defendant obtain information or something of value. 18 U.S.C. §§ 1030(a)(2)(C), (a)(4); *Lewis-Burke*, 725 F. Supp. 2d at 191. But the alleged password changes, administrator sessions, “mso” logins, and TR-069 reconfiguration describe activity on the equipment, not information Comcast allegedly

acquired from it. Indeed, Plaintiff expressly acknowledges that Comcast’s alleged conduct did not involve “the acquisition of . . . contents.” Opp. 48. His claim therefore fails.

The same is true as to Anthropic. Plaintiff takes issue with the alleged actions of an AI coding assistant (Opp. 49-50), which lack consciousness and therefore lack intent as courts have found in the intellectual property context. *See, e.g., Alice Corp. Pty. Ltd. v. CLS Bank Int’l*, 573 U.S. 208, 225 (2014) (finding computer functions that “obtain data . . . and issue automated instructions” are routine and purely generic); *Thaler v. Perlmutter*, 130 F.4th 1039, 1046, 1048 (D.C. Cir. 2025) (finding AI and computers do not have mens rea in affirming denial of copyright application case because “[m]achines lack minds and do not intend anything.”).

Plaintiff’s arguments that he adequately alleges damage and loss are also unavailing. With respect to Comcast, he labels the alleged conduct a “wipe,” “lockout,” and “reconfiguration,” but does not identify what data, program, system, or information lost integrity or availability, what function became unavailable, or what restoration was required. Opp. 50-52. Nor does he allege facts plausibly connecting Comcast to any such impairment. With respect to Anthropic, Plaintiff’s reliance on the rewriting of Claude settings concerns Anthropic, not Comcast. TAC ¶ 284. Again, Plaintiff alleges no facts connecting Anthropic to damage he personally sustained.

Plaintiff’s alleged loss is similarly deficient. Plaintiff alleges only that unspecified “computer-related remediation and investigation costs” exceeded \$5,000. Opp. 52; TAC ¶ 283. He does not identify any Comcast-related expense, which computer was assessed, what impairment was remediated, or what portion of the asserted total resulted from the alleged router access. Similarly, Plaintiff does not articulate facts to show any loss traceable to Anthropic. *See* 18 U.S.C. § 1030(g); *Bose v. Interclick, Inc.*, 2011 WL 4343517, at *4 (S.D.N.Y. Aug. 17, 2011) (finding at motion to dismiss stage “Bose fails to quantify any damage that Interclick caused.”).

L. Plaintiff Admits that he Fails to State a Claim Under the California Consumer Privacy Act (Count XIV).

The California Consumer Privacy Act (CCPA) is designed to protect residents of California. Specifically, the CCPA empowers a “*consumer* whose nonencrypted and nonredacted personal information . . . is subject to an unauthorized access and exfiltration, theft, or disclosure” to pursue a civil lawsuit. Cal. Civ. Code § 1798.150(a)(1). Under the CCPA, the term “consumer” means “a natural person who is a California resident.” Cal. Civ. Code § 1798.140(i). Plaintiff concedes that he fails to state a claim under the CCPA because he is a resident of Minnesota, not California. Opp. 52. Count XIV of the TAC should be dismissed because Plaintiff concedes that count and he lacks standing to bring a claim under the CCPA as a resident of Minnesota.

M. Plaintiff Fails to State a Claim for App Store Misrepresentation (Count XV).

Plaintiff’s Count XV alleging “App Store Privacy Label Misrepresentation,” should be dismissed because Plaintiff is, at best, a third party to alleged “fraud on Apple’s review process[.]” TAC ¶ 289. Plaintiff has not pleaded fraud with specificity and lacks standing. *See* MTD 49.

Plaintiff argues only that the fraud can be inferred by comparing the privacy labels in question to his allegations of improper data collection and dissemination. *See* Opp. 53. But he concedes that the privacy labels in question acknowledge “limited third-party data sharing”; his identification of a single third-party with whom his data was allegedly shared therefore does not support his argument or inference. Opp. 53. This does not satisfy Rule 9’s requirements for pleading fraud, and Plaintiff did not plead intent, as is required.

Again, Plaintiff does not address a fundamental issue: even if he had pleaded fraud with specificity, the fraud he alleges is in the representations made *to Apple*, and he does not identify any resulting personal economic injury. *See* MTD 49; *Austin-Spearman v. AARP*, 119 F. Supp. 3d 1, 9-10 (D.D.C. 2015). Plaintiff states only that “the value differential between the represented

and delivered product is a concrete, particularized economic injury, and a *monetary* one,” but does not provide any details of the alleged personalized economic injury. *See* Opp. 53. As Plaintiff relies on inferences and implications without explanation this Count should be dismissed.

N. Plaintiff Fails to State a Claim for Intentional or Negligent Infliction of Emotional Distress (Counts XVI and XVII).

The Opposition fails to explain how the conduct alleged satisfies the “exceptionally demanding” threshold of heinous action required to state a claim for IIED, *Bonner v. S-Fer Int’l, Inc.*, 207 F. Supp. 3d 19, 25 (D.D.C. 2016), or how it is akin to the examples of extreme and outrageous conduct discussed in the case law and Restatements. *See* MTD 49-52.¹⁶ Instead, Plaintiff inexplicably mischaracterizes the inquiry as “turn[ing] on whether the conduct was directed at Plaintiff.” Opp. 54-58. But conduct directed at Plaintiff does not make it “extreme and outrageous,” as Plaintiff is required to show. *Smith v. United States*, 843 F.3d 509, 515 (D.C. Cir. 2016); *Bonner*, 207 F. Supp. 3d at 25. Because Plaintiff has not plausibly alleged this key element (among others), his IIED claim must be dismissed.

As for the NIED claim, Plaintiff clarifies that his claim against Anthropic and OpenAI rests on a special-relationship theory (Opp. 57-58) but fails to address the many reasons why that theory does not apply here. *See* MTD 52-54. The Opposition also appears to concede the TAC’s causation and injury issues, though it attempts to dismiss them as issues of standing and “pleading-precision.” Opp. 57. Failure to plausibly allege injury—as a matter of Article III standing or on the merits—is grounds for dismissal, as is the failure to plead the elements of a claim.

Plaintiff’s arguments concerning Comcast fare no better. In the MTD, Comcast

¹⁶ Nor does the fact that Plaintiff chose to use Defendants’ AI models to draft his briefs create a “lock-in” or “litigation necessity” that would support an outrageousness finding. Opp. 54; *see* Restatement (Second) Torts § 46 (listing examples of conduct that would rise to IIED). Plaintiff’s assertions are devoid of authority.

demonstrated that Plaintiff’s theory against Comcast—the “zone-of-danger” theory—fails because the TAC does not allege (let alone plausibly allege) that Comcast physically endangered Plaintiff, placed him in immediate risk of bodily harm, or caused him to fear for his personal safety. *See* MTD 53-54 (citing authorities). Plaintiff does not respond to that argument. He likewise never addresses the zone-of-danger arguments, never attempts to explain how the alleged conduct placed him at risk of physical injury, and never cites supporting authority. Opp. 57 (arguing merely that he has pleaded this theory in the alternative). Separate from the reasons set forth in the MTD, by failing to respond to this argument, Plaintiff has conceded the issue, and his negligent infliction of emotional distress claim should be dismissed. *Betz v. Jefferson Cap. Sys., LLC*, 68 F. Supp. 3d 130, 136 (D.D.C. 2014) (“Plaintiff did not respond in his opposition to any of defendant’s argument regarding his invasion of privacy claim. The Court accordingly treats those arguments as conceded, and will grant defendant’s motion to dismiss plaintiff’s invasion of privacy claim.”).

O. Plaintiff Fails to State a Products Liability Claim (Count XVIII).

Plaintiff’s products liability claims fail because Defendants’ software is not a “product” within the meaning of the doctrine, and certainly not as a matter of D.C. law. *See* MTD 54-56. Plaintiff’s Opposition does not credibly dispute this. Additionally, the TAC and Opposition do not explain the basic questions of this theory of liability—e.g., how the alleged design defect caused a cognizable injury to Plaintiff, or how Defendants’ purported “[s]afer alternative designs” would have mitigated whatever risk caused the harm in question. *See* TAC ¶¶ 318-20; MTD 54-55; *see also Warner Fruehauf Trailer Co. v. Boston*, 654 A.2d 1272, 1276 (D.C. 1995) (design defect claim requires showing of “the risks, costs and benefits of the product in question and alternative designs, and that the magnitude of the danger from the product outweighed the costs of avoiding the danger”). Plaintiff has not connected these dots, and it is unclear what specific design

aspects of Defendants’ “products” can be said to have harmed Plaintiff.

The same foundational pleading problems defeat Plaintiff’s manufacturing-defect and failure-to-warn claims. The manufacturing defect claim is predicated on the same theory of liability as the design defect claim: that a safer design was withheld. Opp. 58. But that is just a duplicative design defect claim. It does not allege, as it must for a manufacturing-defect claim, that Defendants’ “products” “depart[ed] from [their] intended design.” *See Pinkett v. Dr. Leonard’s Healthcare Corp.*, 2020 WL 1536305, at *4 (D.D.C. Mar. 31, 2020). Indeed, that would contradict Plaintiff’s whole theory that Defendants’ actions were deliberate. TAC ¶ 321.

As for the failure-to-warn claim, the TAC recites a laundry list of alleged omissions but fails to explain how something like an “IP-suppression-system-prompt injections” (TAC ¶ 321) or “covert Floodgate Proxy surveillance” (TAC ¶ 327) played a “substantial factor in causing plaintiff[’s] injuries.” *Aston v. Johnson & Johnson*, 248 F. Supp. 3d 43, 53 (D.D.C. 2017). The TAC does not even identify what the injury was or whether the failure to warn was the but-for or proximate cause of Plaintiff’s injuries. Nor does the Opposition’s single sentence in defense of this theory remedy these issues. Opp. 58. Plaintiff’s products liability claims should be dismissed.

P. The TAC Should Be Dismissed Due to Improper Group Pleading (Counts I-XVIII).

Plaintiff argues that the TAC does not engage in improper group pleading because the more than one hundred exhibits attached to the pleading are organized “per-defendant.” Opp. 59. That misses the point. Attaching exhibits does not satisfy Rule 8, particularly where Plaintiff asserts 18 claims against defendants and leaves the Court to determine which factual allegations and exhibits supposedly support each claim. *See supra* Section II.A. (discussing improper incorporation).

Plaintiff next argues that the TAC “differentiates” among Defendants and cites six paragraphs as evidence. Opp. 59. Those paragraphs demonstrate the opposite. Paragraph 256

alleges breach of contract based on “all corporate defendants’ failure to deliver services,” while mentioning only a few Defendants by name. The same is true of Paragraph 262, which alleges deceptive trade practices arising from “all corporate defendants’ misrepresentation.” Paragraph 272 refers generally to “defendants’ infringement,” identifying only METR by name. Paragraph 285 does not identify any Defendant. Paragraph 289 alleges that “Defendants submitted false Privacy Label attestations to Apple’s App Store,” without explaining which Defendant supposedly made what representation. And Paragraph 317 merely incorporates by reference preceding paragraphs in support of its product liability claim. These allegations repeatedly lump together Defendants. *See Est. of Mickens v. U.S. Bank Nat’l Ass’n*, 2021 WL 3418955, at *4 (D.D.C. Aug. 5, 2021) (Jackson, J.).

Plaintiff also misses the point in arguing that the MTD “tabulates . . . exactly which Defendants each count names and does not name,” showing Defendants understand the TAC. Opp. 59. The issue is not whether a Defendant is implicated in a particular count. The issue is that the TAC does not explain what each Defendant allegedly did or which factual allegations and exhibits support the claim against that Defendant. Rule 8 requires that Defendants be given fair notice of the claims against them, not forced to guess at Plaintiff’s theory from hundreds of pages of allegations and more than one hundred exhibits.¹⁷ This is further support for dismissal.

III. CONCLUSION

For these reasons, the Corporate Defendants respectfully request that the Court dismiss Plaintiff’s TAC with prejudice.

¹⁷ Contrary to Plaintiff’s argument, Defendants could not “tabulate” the counts correctly. In their MTD, Defendants argued that none of the Corporate Defendants other than Anthropic was mentioned in the conspiracy claim. MTD 25. Plaintiff now responds that Comcast is implicated in that claim as well. Opp. 35. This underscores the notice issue and confirms that the TAC fails to allege which Defendant engaged in what conduct.

Dated: September 18, 2026

Respectfully submitted,

ANTHROPIC, PBC

/s/ Tara N. Tighe

Danny C. Onorato

Tara N. Tighe

Schertler Onorato Mead Sears & Manning

555 13th Street NW | Suite 500 West

Washington, DC 20004

donorato@schertlerlaw.com

ttighe@schertlerlaw.com

Phone: (202) 628-4199

Fax: (202) 628-4177

APPLE INC.

/s/ Kartik Narayan Venguswamy

Kartik Narayan Venguswamy

ArentFox Schiff

1717 K Street NW

Washington, DC 20006

kartik.venguswamy@afslaw.com

Phone: (202) 350-3734

Fax: (202) 857-6395

**COMCAST CABLE
COMMUNICATIONS, LLC**

/s/ Jason F. Hoffman

Jason F. Hoffman

Baker & Hostetler LLP

1050 Connecticut Avenue NW | Suite 1100

Washington, DC 20036

jhoffman@bakerlaw.com

Phone: (202) 861-1657

Fax: (202) 861-1783

OPENAI, INC.

/s/ Benjamin D. Margo

Benjamin D. Margo

Wilson Sonsini Goodrich & Rosati

31 West 52nd Street | Fifth Floor

New York, NY 10019

bmargo@wsgr.com
Phone: (212) 497-7732
Fax: (866) 974-7329

Edward P. Percarpio
Wilson Sonsini Goodrich & Rosati
1700 K Street NW
Washington, DC 20006
epercarpio@wsgr.com
Phone: (202) 973-8898
Fax: (866) 974-7329

**MODEL EVALUATION
AND THREAT RESEARCH (METR)**

/s/ Niyati Ahuja
Niyati Ahuja (*pro hac vice*)
Reed Smith LLP
599 Lexington Avenue | 22nd Floor
New York, NY 10022
nahuja@reedsmith.com
Phone: (212) 521-5400
Fax: (212) 521-5450

Selina Coleman
Reed Smith LLP
1301 K Street NW | Suite 1000 - East Tower
Washington, DC 20005
scoleman@reedsmith.com
Phone: (202) 414-9220
Fax: (202) 414-9299

CERTIFICATE OF SERVICE

I certify that on September 18, 2026, a true and correct copy of the forgoing document was filed using the Court's electronic case filing system and served by email on *pro se* Plaintiff Joseph Kirchner.

Respectfully Submitted,

/s/ Tara N. Tighe

Tara N. Tighe | DC Bar No. 1742435